At the same time, young Conradin lost his claim to Germany. Conrad's rival William of Holland had drowned crossing a stream; after Conrad's death, the electors of Germany gathered together to decide on the next king of Germany. No one voted for Conradin. It seemed clear that Germany, after nearly ten years of chaos, needed a grown-up as king—and preferably one from outside the country, since all the German candidates could claim only fragmented and partial support.

But there was no clear outside choice either. After nearly a year of bickering, half of the electors decided to vote for Alfonso X, king of León-Castile, an experienced statesman who also happened to be the grandson of the German baron Philip of Swabia (by way of his mother). The rest preferred Henry III's younger brother Richard of Cornwall, second son of John Lackland. Richard managed to get Alexander IV on his side, and even went to Germany to be crowned. But, faced with the necessity of conquering over half the country to actually rule it, he soon gave up and went home again.[6]

Now the English royal family had tangled itself up in two foreign struggles—one in Sicily, the other in Germany—for personal gain. Henry III, never a popular king, had enmeshed himself in a web of stupid decisions. Married to Eleanor of Provence, he had promoted too many of his wife's French relatives into plum court positions, annoying his local courtiers. He had raised taxes in an attempt to collect the pope's fee for the Sicilian crown, annoying everyone else. And after an adolescence spent under the thumb of a regent, he had grown into a spiky and irascible man, resentful of any advisor who seemed too controlling. He feuded with his officials; he fell out with his brother-in-law, the younger Simon de Montfort; when he needed the approval of the Curia Regis, the gathering of churchmen and landholders named by the Magna Carta as the "common counsel of our realm," he summoned only those men who were certain to agree with him; he led expensive and pointless campaigns into the French lands that had once belonged to England. "He despoiled his native subjects, and enriched his brothers, relations, and kinsmen," Matthew Paris sums up, ". . . [and] the kingdom . . . was all full of suspicion and fox-like treachery."[7]

Henry was also facing the possibility of excommunication. He had not managed to raise either an army or the necessary funds that his oath to Innocent demanded. In March of 1258, Alexander IV sent him a stern final warning: if he didn't pay up by June 1, he would be excommunicated.

Henry had no choice. To raise the necessary funds, he needed the entire Curia Regis to agree to new scutage. So in early April 1258, he summoned the priests and barons of England together in London and demanded more money.